



2025 SENATE BILL 939

February 6, 2026 - Introduced by Senators JACQUE and QUINN, cosponsored by Representatives FRANKLIN, GOEBEN, ARMSTRONG, BEHNKE, DITTRICH, GUNDRUM, KNODL, KREIBICH, MAXEY, MURPHY, MURSAU, NEDWESKI and O'CONNOR. Referred to Committee on Utilities, Technology and Tourism.

1 **AN ACT** *to create* 100.80 of the statutes; **relating to:** artificial intelligence
2 systems that simulate humanlike relationships with children and providing a
3 penalty.

Analysis by the Legislative Reference Bureau

This bill limits the circumstances in which companion chatbots can be made available to children. A “companion chatbot” is, with exceptions, a generative artificial intelligence system with a natural language interface that simulates a sustained humanlike relationship with a user by 1) retaining information on prior interactions or user sessions and user preferences to personalize the interaction and facilitate ongoing engagement with the generative artificial intelligence system, 2) asking unprompted or unsolicited emotion-based questions that go beyond a direct response to a user prompt, and 3) sustaining an ongoing dialogue concerning matters personal to the user. An “operator” is a person that creates, controls, deploys, operates, or otherwise exercises authority over a companion chatbot, but does not include an end user of the companion chatbot. A “child” is an individual who is less than 18 years of age and who resides in Wisconsin; however, “child” does not include a user that the operator has reasonably determined is not a child. The bill prohibits an operator from making a companion chatbot available to a child unless the companion chatbot incorporates safety measures such that it is not foreseeably capable of 1) encouraging the child to engage in self-harm, suicidal ideation, violence, consumption of drugs or alcohol, or disordered eating; 2) offering

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mental health services to the child or discouraging the child from seeking help from a qualified professional or appropriate adult; 3) encouraging the child to harm others or participate in illegal activity, including the creation of child sexual abuse materials; 4) depicting or describing sexually explicit conduct to a child or soliciting depictions or descriptions of sexually explicit conduct from a child; 5) prioritizing validation of the child's beliefs, preferences, or desires over factual accuracy or the child's safety; or 6) optimizing engagement in a manner that supersedes the companion chatbot's required safety measures described in items 1 to 5. Until January 1, 2027, this prohibition applies only if the operator has actual knowledge that the user is a child.

Under the bill, the Department of Agriculture, Trade and Consumer Protection or the Department of Justice in consultation with DATCP may investigate violations and bring an action to recover a civil forfeiture of up to \$25,000 per violation, for injunctive relief, and for court costs and reasonable attorney fees. In addition, a child who suffers actual harm as a result of a violation, or the child's parent or guardian, may bring a civil action against the operator to recover actual and punitive damages, court costs, and reasonable attorney fees.

The people of the state of Wisconsin, represented in senate and assembly, do enact as follows:

SECTION 1. 100.80 of the statutes is created to read:

100.80 Artificial intelligence systems simulating humanlike relationships with children. (1) DEFINITIONS. In this section:

(a) "Artificial intelligence" means an engineered or machine-based system that varies in its level of autonomy and that can, for explicit or implicit objectives, infer from the input it receives how to generate outputs that can influence physical or virtual environments.

(b) "Child" means an individual who is less than 18 years of age and who resides in this state.

(c) 1. Subject to subd. 2., "companion chatbot" means a generative artificial intelligence system with a natural language interface that simulates a sustained humanlike relationship with a user by doing all of the following:

a. Retaining information on prior interactions or user sessions and user

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1 preferences to personalize the interaction and facilitate ongoing engagement with
2 the generative artificial intelligence system.

3 b. Asking unprompted or unsolicited emotion-based questions that go beyond
4 a direct response to a user prompt.

5 c. Sustaining an ongoing dialogue concerning matters personal to the user.

6 2. “Companion chatbot” does not include any of the following:

7 a. Any system used by a business entity solely for customer service or to
8 strictly provide users with information about available commercial services or
9 products provided by that entity, customer service account information, or other
10 information strictly related to that entity’s customer service.

11 b. Any system that is solely designed and marketed for providing efficiency
12 improvements or research or technical assistance.

13 c. Any system used by a business entity solely for internal purposes or
14 employee productivity.

15 (d) “Generative artificial intelligence” means artificial intelligence that can
16 generate derived synthetic content, including text, images, video, and audio, that
17 emulates the structure and characteristics of its training data.

18 (e) “Operator” means any person that creates, controls, deploys, operates, or
19 otherwise exercises authority over a companion chatbot, but does not include an end
20 user of the companion chatbot.

21 (f) “Sexually explicit conduct” has the meaning given in s. 948.01 (7).

22 (2) COMPANION CHATBOTS FOR CHILDREN. (a) Subject to par. (b), an operator
23 may not make a companion chatbot available to a child unless the companion

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1 chatbot incorporates safety measures such that it is not foreseeably capable of any of
2 the following:

3 1. Encouraging the child to engage in self-harm, suicidal ideation, violence,
4 consumption of drugs or alcohol, or disordered eating.

5 2. Offering mental health services to the child or discouraging the child from
6 seeking help from a qualified professional or appropriate adult.

7 3. Encouraging the child to harm others or to participate in illegal activity,
8 including the creation of child sexual abuse materials.

9 4. Depicting or describing sexually explicit conduct to a child or soliciting
10 depictions or descriptions of sexually explicit conduct from a child.

11 5. Prioritizing validation of the child's beliefs, preferences, or desires over
12 factual accuracy or the child's safety.

13 6. Optimizing engagement in a manner that supersedes the companion
14 chatbot's required safety measures described in subds. 1. to 5.

15 (b) Paragraph (a) does not apply to a user that the operator has reasonably
16 determined is not a child.

17 **(3) ENFORCEMENT; PENALTY; PRIVATE CAUSE OF ACTION.** (a) The department
18 or the department of justice in consultation with the department may investigate
19 violations of this section and may bring an action in the name of the state to recover
20 a civil forfeiture of not more than \$25,000 for each violation of sub. (2) or for
21 injunctive relief, or both, together with court costs and, notwithstanding s. 814.04
22 (1), reasonable attorney fees. Each day of violation constitutes a separate offense.

23 (b) A child who suffers actual harm as a result of a violation of sub. (2), or a
24 parent or guardian acting on behalf of the child, may bring a civil action against the

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1 operator to recover actual and punitive damages, together with court costs and,
2 notwithstanding s. 814.04 (1), reasonable attorney fees. The court may also award
3 injunctive relief or any other equitable relief the court determines is appropriate.

4 **SECTION 2. Nonstatutory provisions.**

5 (1) TRANSITION PROVISION. Notwithstanding s. 100.80 (2) (b), before January
6 1, 2027, an operator, as defined in s. 100.80 (1) (e), is not required to implement the
7 safety measures in s. 100.80 (2) (a) if the operator does not have actual knowledge
8 that a user is a child, as defined in s. 100.80 (1) (b).

9 **SECTION 3. Effective date.**

10 (1) This act takes effect on the first day of the 3rd month beginning after
11 publication.

12 **(END)**